



File No.: EXP202307799

RESOLUTION OF

PROCEEDING OF WARNING

From the proceeding initiated by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: A.A.A. (*hereinafter, the claimant) filed a complaint with the Spanish Agency for Data Protection on June 1, 2023. The complaint is directed against the party identified as B.B.B. with NIF ***NIF.1 (hereinafter, the respondent). The reasons for the complaint are as follows:

“(…) the respondent has a video surveillance system on a property they own that has cameras which, due to their location and orientation, are capable of capturing images of the claimant's residence, adjacent to the respondent's property.

Images showing the location of the cameras are provided (Annex I).

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), the complaint was forwarded to the respondent on June 7, 2023, for them to analyze it and inform this Agency within one month of the actions taken to comply with the requirements set forth in the data protection regulations.

THIRD: On July 24, 2023, a response was made to the transfer carried out by this AEPD:

- A photograph showing the presence of 4 cameras on the respondent's property is provided.
- A screenshot of what is visible with the four cameras is provided.

FOURTH: On September 1, 2023, in accordance with Article 65 of the LOPDGDD, the complaint filed by the claimant was admitted for processing.

FIFTH: On July 24, 2024, the Director of the Spanish Agency for Data Protection decided to initiate a warning procedure against the respondent for the alleged infringement of Article 5.1 c) of the GDPR, classified under Article 83.5 of the GDPR.

SIXTH: The notification of the aforementioned initiation agreement, which was carried out in accordance with the provisions established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was received in due time and form as evidenced by the acknowledgment of receipt in the file.

Date of access to the content of the notification: July 29, 2024, 17:49

SEVENTH: On August 9, 2024, a written statement of allegations regarding the Initiation Agreement associated with the referenced procedure was received, arguing in summary “that these images must refer to the camera installed on the right lateral facade of the residence.”

“It should be noted that the claimant's access door and the stairs to access their residence are right next to and in the same direction as our access door and stairs.

This camera is exclusively oriented to capture from start to finish the staircase, which is the only entrance to our residence.

The video surveillance cameras are intended to see who accesses our property and to protect the security of the property and its inhabitants.

In the images, the access stairs and the entrance door are observed, and perhaps, at the end of the stairs, a small part of the wall installed on the claimant's property; in no way are images of their residence captured, which is what they claim in their complaint.

For all these reasons, I request to maintain the camera's field of view since it is necessary to view the entire access staircase to protect the security of the property and its inhabitants, and any modification of the angle would only allow surveillance of a part of the access to the residence.”

In view of all that has been acted upon, the Spanish Agency for Data Protection considers the following facts to be proven in the present proceeding,

PROVEN FACTS

First. The facts arise from the complaint dated June 1, 2023, through which the "presence of cameras" affecting private property without justified cause is reported.

Second. It is established that B.B.B., NIF ***NIF.1, is the main responsible party, who does not deny being responsible for the installation of the cameras.

Third. It is established that one of the cameras in the system is misaligned, capturing images of the adjacent plot.

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LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued for its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

In this case, the complaint dated 01/06/23 is examined, through which the "presence of cameras that could affect private property, without justified cause" is reported (folio no. 1).

Article 5.1 c) GDPR provides as follows: Personal data shall be: "adequate, relevant, and limited to what is necessary in relation to the purposes for which they are processed ('data minimization')."

It should be noted that individuals are responsible for ensuring that the installed systems comply with current legislation, demonstrating that they meet all the requirements established by the applicable regulations.

The installation of such devices must have the mandatory informative sign, indicating the purposes and the responsible party for the processing of personal data, if applicable.

In any case, the cameras must be oriented towards private space, avoiding intimidating neighboring residents with such devices, as well as monitoring transit areas without justified cause.

Moreover, with such devices, images of public space cannot be obtained, as this is the exclusive competence of the State Security Forces and Corps, in accordance with the current Organic Law 4/1997, of August 4, which regulates the use of video cameras by the Security Forces and Corps in public places.

It is worth noting that even in the case of a "simulated" camera, it must preferably be oriented towards private space, as it is considered that such devices can affect the privacy of third parties, who feel intimidated by the belief that they are subject to permanent recording.

Individuals cannot install devices for obtaining images of public space and/or the transit of third parties, outside the cases permitted by the regulations.

The purpose of such devices must be the security of the property and its inhabitants, avoiding the infringement of the rights of third parties who feel intimidated by them.

The cameras must be limited to the protection of the property owned by the individual in such a way that they do not affect the area of third parties who feel intimidated by them, as they affect their free transit area.

III

Classification and Qualification of the Infraction

In accordance with the evidence available in this warning procedure, it is considered that the party

complained against has a video surveillance camera system that, according to the indications provided, could affect the privacy of a third party, without justified cause.

Upon examining the photographs provided by the respondent, one of the cameras shows a small lateral portion outside of their property, exceeding the required orientation angle.

The cameras fulfill the intended purpose by being exclusively oriented towards private property, thereby avoiding intimidation of third parties who feel monitored by them.

The known facts are therefore constitutive of an infraction, attributable to the party complained against under Article 5.1 c) GDPR, as previously cited.

Article 83.5 GDPR states: "Infringements of the following provisions shall be subject to administrative fines of up to 20,000,000 EUR or, in the case of an undertaking, an amount equivalent to 4% of the total annual global turnover of the preceding financial year, whichever is higher:

a) the basic principles for processing, including the conditions for consent under Articles 5, 6, 7, and 9; C/ Jorge Juan, 6

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Article 72, section 1 of the LOPDGDD (Organic Law 3/2018, December 5) regarding the statute of limitations for very serious infringements states that "they shall prescribe after three years" and particularly the following:

a) The processing of personal data in violation of the principles and guarantees established in Article 5 of Regulation (EU) 2016/679

IV

Proposal for a warning

Without prejudice to the provisions of Article 83 of the GDPR, the aforementioned Regulation provides in section 2.b) of Article 58 "Powers" the following:

"Each supervisory authority shall have all of the following corrective powers indicated below:

(...)

b) to issue a warning to any controller or processor when the processing operations have infringed the provisions of this Regulation; (...)"

Furthermore, Article 64 of the LOPDGDD, which regulates the "Form of initiation of the procedure and duration," states in its third section that:

"3. When appropriate, taking into account the nature of the facts and duly considering the criteria established in Article 83.2 of Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016, the Spanish Data Protection Agency, after hearing the controller or processor, may issue a warning, as well as order the controller or processor to adopt corrective measures aimed at ending the possible non-compliance with data protection legislation in a specific manner and within the specified time frame.

The procedure shall have a maximum duration of six months from the date of the initiation agreement. After this period, it shall expire, and consequently, the proceedings shall be archived.

V

Adoption of measures

The text of the resolution establishes what the infringements committed have been and the facts that have led to the violation of data protection regulations, from which it is clearly inferred what measures are to be adopted, without prejudice to the fact that the type of procedures, mechanisms, or specific instruments for implementing them corresponds to the sanctioned party, as it is the controller who fully knows their organization and must decide, based on proactive responsibility and a risk-based approach, how to comply with the GDPR and the LOPDGDD.

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It is noted that failure to comply with the possible order to adopt measures imposed by this agency in the resolution of the present procedure may be considered an administrative infringement in accordance with the provisions of the GDPR, classified as an infringement in Articles 83.5 and 83.6, which may lead to the initiation of further administrative sanctioning procedures.

The summoned party must provide a photograph (e.g., date and time) of what is captured by the cameras or proceed to provide a new photograph with the reorientation of the camera(s) that exceeds the field of vision, without prejudice to any legal arguments they deem necessary to make.

Therefore, in accordance with the applicable legislation and having assessed the criteria for the graduation of the sanctions whose existence has been established,

the Director of the Spanish Data Protection Agency RESOLVES:

FIRST: TO ISSUE A WARNING to B.B.B., with NIF ***NIF.1, for an infringement of Article 5.1 c) GDPR classified under Article 83.5 GDPR.

SECOND: TO ORDER B.B.B., with NIF ***NIF.1, that pursuant to Article 58.2.d) of the GDPR, within ONE MONTH from the date this resolution becomes final and enforceable, to prove compliance with the following measure:

- Reorientation of the angle of the camera directed towards the adjacent property, so that the land of the same is not captured, providing a photograph (date and time) that proves this or, if the system allows, pixelating the affected area.

THIRD: TO NOTIFY this resolution to Mr. B.B.B.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Data Protection Agency within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law. Finally, it is noted that in accordance with the provisions of Article 90.3 a) of the LPACAP, the final resolution in the administrative procedure may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Data Protection Agency, submitting it through the Electronic Registry of the Agency

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web/], or through any of the other registers provided for in Article 16.4 of the aforementioned Law 39/2015, of October 1. The Agency must also be provided with the documentation that proves the effective filing of the contentious-administrative appeal. If the Agency is not aware of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, it will consider the precautionary suspension to be concluded.

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Mar España Martí

Director of the Spanish Agency for Data Protection

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